

The Motor Vehicles Act, 1988 and Amendment Act 2019

Authority: Ministry of Road Transport and Highways, Government of India

Year: 1988

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Section 119. Duty to obey traffic signs and traffic light signals

Section 119. Duty to obey traffic signs.

(1) Every driver of a motor vehicle shall drive the vehicle in conformity with any indicated traffic sign or mandatory traffic signal light, including red light stop signals, lane markings, and stop signs, and in conformity with the driving regulations made by the Central Government, and shall comply with all directions given to him by any police officer in uniform engaged in the regulation of traffic in any public place.

(2) In this section, traffic sign includes any signal exhibited by an automatic traffic signal device, traffic police officer, or road marking.

Section 177. General provision for punishment of offences

Section 177. General provision for punishment of offences.

Whoever contravenes any provision of this Act or of any rule, regulation or notification made thereunder shall, if no other penalty is provided for the offence, be punishable for the first offence with fine which may extend to five hundred rupees, and for any second or subsequent offence with fine which may extend to one thousand five hundred rupees.

Section 184. Driving dangerously, jumping red lights and traffic signals

Section 184. Driving dangerously.

Whoever drives a motor vehicle at a speed or in a manner which is dangerous to the public, having regard to all the circumstances of the case including the nature, condition and use of the place where the vehicle is driven and the amount of traffic which actually is at the time, or which might reasonably be expected to be in the place, shall be punished:

- (a) for the first offence, with imprisonment for a term which may extend to one year or with fine which shall not be less than one thousand rupees but which may extend to five thousand rupees, or with both; and
- (b) for any second or subsequent offence if committed within three years of the commission of a previous similar offence, with imprisonment for a term which may extend to two years, or with fine which may extend to ten thousand rupees, or with both.

Explanation.—For the purposes of this section, driving dangerously includes:

- (i) jumping a red light or automatic traffic signal;
- (ii) violating a stop sign;
- (iii) use of handheld communication devices while driving;
- (iv) passing or overtaking other vehicles contrary to law;
- (v) driving against the authorized flow of traffic;
- (vi) driving in a manner that endangers the safety of any person or road user.

Section 181. Driving vehicles in contravention of section 3 or section 4 (Driving without license)

Section 181. Driving without valid driving licence.

Whoever drives a motor vehicle in contravention of section 3 or section 4 without holding an effective driving licence for that class of vehicle shall be punishable with imprisonment for a term which may extend to three months, or with fine of five thousand rupees, or with both.

Section 185. Driving by a drunken person or by a person under the influence of drugs

Section 185. Driving by a drunken person or by a person under the influence of drugs.

Whoever, while driving, or attempting to drive, a motor vehicle:

(a) has, in his blood, alcohol exceeding 30 mg. per 100 ml. of blood detected in a test by a breath analyser; or

(b) is under the influence of a drug to such an extent as to be incapable of exercising proper control over the vehicle, shall be punishable for the first offence with imprisonment for a term which may extend to six months, or with fine of ten thousand rupees, or with both; and for a second or subsequent offence if committed within three years with imprisonment for a term which may extend to two years, or with fine of fifteen thousand rupees, or with both.

Section 183. Driving at excessive speed / Overspeeding

Section 183. Driving at excessive speed.

(1) Whoever drives a light motor vehicle at a speed exceeding the maximum speed fixed for that vehicle shall be punishable with a fine which shall not be less than one thousand rupees but which may extend to two thousand rupees.

(2) Whoever drives a medium or heavy goods passenger vehicle exceeding the speed limit shall be punishable with fine not less than two thousand rupees but which may extend to four thousand rupees; and for subsequent offence the driving licence may be impounded.

Section 194B. Use of safety belts and seating of children

Section 194B. Use of safety belts.

(1) Whoever drives a motor vehicle without wearing a safety belt or carries passengers not wearing safety belts shall be punishable with a fine of one thousand rupees.

(2) Whoever drives a motor vehicle without securing a child under fourteen years with a safety belt or child restraint system shall be punishable with a fine of one thousand rupees.

Section 194D. Penalty for riding two-wheeler without protective headgear (helmet)

Section 194D. Penalty relating to helmets.

Whoever drives a motorcycle or rides as a pillion rider without wearing protective headgear (helmet) conforming to standards shall be punishable with a fine of one thousand rupees and shall be disqualified for holding driving licence for a period of three months.

Section 196. Driving uninsured vehicle without third party insurance

Section 196. Driving uninsured vehicle.

Whoever drives a motor vehicle or causes or allows a motor vehicle to be driven without valid third party insurance shall be punishable for the first offence with imprisonment for a term which may extend to three months, or with fine of two thousand rupees, or with both, and for a second or subsequent offence with imprisonment up to three months, or with fine of four thousand rupees, or with both.

Section 199A. Offences by juveniles and vehicle owners

Section 199A. Offences by juveniles.

(1) Where an offence under this Act has been committed by a juvenile, the guardian of such juvenile or the owner of the motor vehicle shall be deemed to be guilty of the offence and shall be liable to be proceeded against and punished accordingly:

Provided that the guardian or owner shall not be liable if he proves that the offence was committed without his knowledge or that he exercised all due diligence to prevent it.

(2) In addition to the penalty, the guardian or owner shall be punishable with imprisonment for a term which may extend to three years and with a fine of twenty-five thousand rupees.

(3) The registration of the motor vehicle used in the commission of the offence shall be cancelled for a period of twelve months.

(4) The juvenile shall be tried under the Juvenile Justice (Care and Protection of Children) Act, 2015, and shall not be eligible for a learner's licence or driving licence until attaining the age of twenty-five years.

Section 206. Power of police officer to impound document and suspend driving licence

Section 206. Power of police officer to impound document.

(1) Any police officer or authorized officer may seize any document relating to the motor vehicle if there is reason to believe it is false or forged.

(4) A police officer or other person authorized may seize the driving licence of any person who has committed an offence under section 184 (jumping red light, dangerous driving), section 185 (drunk driving), section 183 (overspeeding), section 194D (helmet violation), and forward it to the licensing authority for disqualification or suspension of driving licence.